

STATE OF NEW YORK

6544--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring delivery businesses to factor compliance with certain vehicle and traffic laws when assigning workers to deliver items

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. This act shall be known and may be cited as the "Consider Safety Act".

§ 2. The general business law is amended by adding a new section 391-x to read as follows:

§ 391-x. Delivery service companies; assignment of workers to deliver items. 1. For the purposes of this section, the following terms shall have the following meanings:

(a) "Third-party food delivery service" shall have the same meaning as in section three hundred ninety-one-v of this article.

(b) "Worker" shall mean a natural person who is hired or retained as an independent contractor by a delivery business to make deliveries in exchange for compensation, when such deliveries involve the operation by such worker of a limited use motorcycle or bicycle with or without electric assist.

(c) "Delivery routes" shall mean work involving the same-day delivery or same-day pickup of food and beverage from a food service establishment located in the state.

(d) "Delivery route assignment algorithm" shall mean the method by which third-party food delivery services assign delivery routes.

2. A third-party food delivery service shall ensure that, when assigning delivery routes to workers involving the operation by a worker of a bicycle with or without electric assist, such assignments of delivery routes shall consider the worker's history of compliance with the following provisions of law, if data that allows the third-party food

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 delivery service to determine compliance with such provisions are
2 collected by the third-party food delivery service:

3 (a) Section eleven hundred twenty of the vehicle and traffic law,
4 related to driving on the right side of a roadway;

5 (b) Section eleven hundred twenty-seven of the vehicle and traffic
6 law, related to driving on a one-way roadway;

7 (c) Section eleven hundred eighty of the vehicle and traffic law,
8 related to compliance with applicable speed limits;

9 (d) Section twelve hundred twenty-five-a of the vehicle and traffic
10 law, related to driving on or across a sidewalk; and

11 (e) Section eleven hundred eleven of the vehicle and traffic law,
12 related to obeying red light traffic signals.

13 3. In any delivery route assignment algorithm that assigns delivery
14 routes to workers involving the operation by a worker of a bicycle with
15 or without electric assist, the worker's compliance with the provisions
16 of the vehicle and traffic laws cited in subdivision two of this section
17 shall be weighted at least as much as the combined weight of all factors
18 pertaining to speed and efficiency. In the event that there are more
19 workers available to make deliveries than pending deliveries that need
20 to be made, a third-party food delivery service shall make a good faith
21 effort to assign deliveries to workers with a higher rate of compliance
22 with the vehicle and traffic laws cited in subdivision two of this
23 section.

24 4. Third-party food delivery services that do not already collect data
25 on a worker's compliance with the vehicle and traffic laws cited in
26 subdivision two of this section in the ordinary course of business shall
27 not be required to begin collecting such data to comply with this
28 section; provided, however, that if data on a worker's compliance with
29 the vehicle and traffic laws cited in subdivision two of this section is
30 collected by the third-party food delivery service or was being
31 collected by the third-party food delivery service as of the effective
32 date of this section, then the delivery business shall be subject to the
33 provisions of subdivisions two and three of this section even if such
34 data was not being factored into any delivery route assignment algo-
35 rithms prior to the effective date of this section.

36 For the purposes of this section, third-party food delivery services
37 shall, with respect to the state of New York and any counties, cities,
38 towns and villages within the state where such services operate, be
39 required to collect and utilize the following data for the purpose of
40 effectuating this section: (a) publicly available data noting a maximum
41 speed limit on a given roadway; and (b) whether a given roadway is
42 designated or signposted for one-way traffic.

43 5. The attorney general may bring a civil action against any delivery
44 business that is in violation of this section to: (a) enjoin the
45 violation; and (b) recover a civil penalty of up to one thousand dollars
46 per route assigned per day of non-compliance.

47 6. No data collected pursuant to this section shall be disclosed or
48 otherwise made accessible except:

49 (a) to the worker who is the subject of such data;

50 (b) if necessary to comply with a lawful court order, warrant, or
51 federal law; or

52 (c) to the attorney general for the purpose of determining compliance
53 with this section.

54 § 3. This act shall take effect on the one hundred eightieth day after
55 it shall have become a law.